



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36077042

Date: JAN. 16, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (Multinational Managers or Executives)

The Petitioner, an importer and distributor of materials for the digital printing industry, seeks to permanently employ the Beneficiary as its operations manager under the first preference immigrant classification for multinational executives or managers. *See* Immigration and Nationality Act (the Act) section 203(b)(1) (C), 8 U.S.C. § 1153(b)(1)(C). This classification allows a U.S. employer to permanently transfer a qualified foreign employee to the United States to work in a managerial or executive capacity.

The Director of the Texas Service Center denied the petition, concluding the record did not establish that: (1) the Petitioner had a qualifying relationship with the Beneficiary's foreign employer and (2) the Petitioner would employ the Beneficiary in a managerial or executive capacity in the United States. The Petitioner later filed an appeal that we dismissed; however, we withdrew the Director's determination that it did not establish a qualifying relationship. The matter is now before us again on motion to reconsider. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the motion.

A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit.

In dismissing the appeal, we agreed with the Director's conclusion that the record contained unresolved ambiguities related to the Petitioner's staffing and organizational structure, the Beneficiary's areas of responsibility, and the nature of his day-to-day duties. We reasoned that the Beneficiary's duties included both managerial and non-managerial tasks and that the Petitioner did not sufficiently quantify the amount of time he would spend on each, and in turn, that he would primarily perform managerial duties. *See IKEA US, Inc. v. U.S. Dept. of Justice*, 48 F. Supp. 2d 22, 24 (D.D.C. 1999). We further concluded that the Petitioner did not adequately explain changes made to the Beneficiary's job description, leaving question as to his asserted role when the petition filed. For instance, we emphasized that the Petitioner modified the Beneficiary's asserted position between

manager of the entire commercial division and operations manager overseeing members of the purchasing team, warehouse, and drivers.

Further, we determined the Petitioner did not establish that he was employed as a personnel manager overseeing subordinate managers, supervisors, or professionals as claimed. For instance, we pointed to the evidence reflecting that the Beneficiary had only one direct subordinate, the warehouse manager, and indicated that the provided RFE evidence reflected that he spent a relatively small portion of his time supervising this individual. As such, we concluded that he likely spent more than half of his time acting as a first-line supervisor to non-professional employees. We also emphasized that the Beneficiary's job duties included several non-managerial tasks, determining that this was insufficient to demonstrate that the warehouse manager and his staff were primarily relieving him from performing non-qualifying duties. We also observed that the provided evidence did not clearly corroborate the Petitioner's staffing levels when the petition was filed, this asserted number fluctuating between 11 claimed employees at the time of filing, while elsewhere 14 positions, with only eight employees, beyond the Beneficiary, identified by name. Lastly, we noted that there was no evidence to substantiate wages paid to the Petitioner's employees during the first two quarters of 2023.

On motion, the Petitioner contends we erred in not considering whether the Petitioner qualified as a function manager, asserting they were not required to specifically assert this claimed eligibility. The Petitioner states the provided evidence demonstrated that the Beneficiary was employed as a function manager supervising the activities of the sales team, an essential function of the organization. The Petitioner contests our prior conclusion that the Beneficiary was primarily responsible for non-operational tasks such as keeping the warehouse organized, delivering products, dispatch, and making purchases, asserting that these tasks were performed by the subordinate warehouse manager, warehouse assistant, and drivers. The Petitioner contends that the Beneficiary would have been employed as a function manager responsible for the company's sales and distribution and would not primarily participate in selling the company's products. The Petitioner states the evidence reflected that the Beneficiary held authority over the commercial division of the company and that he had responsibility for managerial level tasks such as monitoring sales team performance and goals, revising cancelled or voided orders and implementing solutions, and authorizing customer returns. The Petitioner contends that the Beneficiary would spend more than 50% of his time overseeing the warehouse manager and exercising the managerial duties of an essential function.

Upon review, we will dismiss the motion to reconsider. we conclude that we did not err in concluding that the Beneficiary would not primarily act as a personnel manager. As discussed in our prior decision, the Beneficiary's duties included both managerial and non-managerial tasks and that the Petitioner did not consistently quantify the amount of time the Beneficiary spent on each, and in turn, that he would primarily perform personnel manager tasks. *See IKEA US, Inc. v. U.S. Dept. of Justice*, 48 F. Supp. 2d 22, 24 (D.D.C. 1999). As noted, the Beneficiary was shown to have only one direct subordinate, the warehouse manager, and the RFE evidence indicated he spent a relatively small portion of his time supervising this individual. For instance, the Petitioner did not provide supporting documentation to substantiate the Beneficiary's personnel authority over this claimed subordinate warehouse manager or evidence of him primarily delegating non-qualifying operational tasks to this employee and his claimed subordinates. In fact, the Petitioner stated that the Beneficiary was responsible for the several apparent non-qualifying tasks such as completing purchasing reports, preparing quote requests, scheduling deliveries, ensuring timely fulfillment of orders, researching

potential vendors and suppliers, keeping records of goods ordered and received, and determining timing of deliveries.

On motion, the Petitioner again emphasizes apparent non-qualifying operational tasks stating that he would be tasked with revising cancelled or voided orders and authorizing customer returns. The Petitioner does not supplement the record to sufficiently substantiate the Beneficiary's primary performance of qualifying managerial tasks, nor does it provide evidence of personnel actions he handled. The Petitioner also did not, and does not, provide documentation to substantiate wages paid to the Beneficiary's claimed subordinates near to the date the petition was filed, as we discussed in our prior decision. Therefore, we did not err in concluding the Petitioner did not sufficiently establish that the Beneficiary would be employed as a personnel manager under an approved petition. The Petitioner must establish that the Beneficiary is *primarily* engaged in managerial duties, as opposed to operational activities alongside the company's other employees. *See Family Inc. v. USCIS*, 469 F.3d 1313, 1316 (9th Cir. 2006).

The Petitioner also suggests on motion that we should have analyzed whether the Beneficiary qualified as a function manager, regardless of whether this was specifically asserted. We disagree. We note that in this proceeding, it is the Petitioner's burden to establish eligibility for the requested benefit. Section 291 of the Act, 8 U.S.C. § 1361. Therefore, we were under no obligation to determine whether the Beneficiary would have qualified as a function manager without this being specifically asserted as a basis for eligibility. Regardless, now that this is being specifically claimed, we will consider whether the Beneficiary would have qualified as a function manager.

The term "function manager" applies generally when a beneficiary does not supervise or control the work of a subordinate staff but instead is primarily responsible for managing an "essential function" within the organization. *See* section 101(a)(44)(A)(ii) of the Act. If a petitioner claims that a beneficiary will manage an essential function, it must clearly describe the duties to be performed in managing the essential function. In addition, the petitioner must demonstrate that "(1) the function is a clearly defined activity; (2) the function is 'essential,' i.e., core to the organization; (3) the beneficiary will primarily *manage*, as opposed to *perform*, the function; (4) the beneficiary will act at a senior level within the organizational hierarchy or with respect to the function managed; and (5) the beneficiary will exercise discretion over the function's day-to-day operations." *Matter of G- Inc.*, Adopted Decision 2017-05 (AAO Nov. 8, 2017).

For similar reasons, the Petitioner did not demonstrate that the Beneficiary would be employed as a function manager. The Petitioner did not sufficiently substantiate with supporting documentation that the Beneficiary would be primarily engaged in managing his function rather than performing it. As noted, the Petitioner indicated that the Beneficiary was responsible for the several apparent non-qualifying operational duties, which we discussed above. Upon motion, the Petitioner again emphasizes apparent non-qualifying operational tasks such as him revising cancelled or voided orders and authorizing customer returns. The Petitioner did not provide sufficient evidence to substantiate that the Beneficiary primarily delegated non-qualifying tasks to subordinates. Due to this lack of evidence and the Beneficiary's stated duty description, it appears more likely than not that he was primarily performing non-qualifying operational tasks himself, or at the very least, performing them alongside his claimed subordinates. Therefore, the Petitioner has not sufficiently supported that the Beneficiary would be employed as a function manager under an approved petition.

On motion to reconsider, the Petitioner has not established that our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Therefore, the motion will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reconsider is dismissed.